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FLORIDA

State Supreme Court rejects request to make Florida Bar investigate Pam Bondi

By **Jay Weaver**

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US Attorney General Pam Bondi speaks during a meeting with President Donald Trump and members of his Cabinet in the Cabinet Room at the White House in Washington, D.C. on March 24, 2025. Sipa USA Sipa USA

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After three months of high-level legal wrangling, the state Supreme Court on Monday rejected a request from a criminal defense attorney to order The Florida Bar to investigate a complaint claiming U.S. Attorney General Pam Bondi violated

Florida's ethics rules as the nation's top law enforcement official.

Five court justices, in a one-paragraph ruling, said South Florida lawyer Jon May "failed to show a clear legal right to the relief requested" and denied his petition on behalf of about 70 liberal-leaning scholars, attorneys and former judges. The justices also rejected his request for an oral argument before the court in Tallahassee.

The coalition's bid submitted by May was always a long shot because the seven justices on Florida's high court were all appointed by Republican Gov. Ron DeSantis and former GOP Gov. Charlie Crist. Two of them did not participate in the ruling.

May's bid was met with opposition not only from The Florida Bar but also in briefs filed by the Florida Attorney General and U.S. Department of Justice.

In June, the coalition filed an ethics complaint against Bondi with The Florida Bar, but the Bar rejected it on jurisdictional grounds, saying in a formal response that it "does not investigate or prosecute sitting officers appointed under the U.S. Constitution while they are in office."

In his petition to the Supreme Court, May argued he "had a clear legal right under the Rules Regulating The Florida Bar to report this alleged professional misconduct."

After his loss, May said in a statement that he "never expected to win in Florida, although I certainly hoped we would." He said that the coalition's goal now "is to inform government lawyers of the legal support they need" and "to represent them pro bono if they are retaliated against" by the Bondi-led Justice Department.

The Florida Bar declined to comment on its victory, referring a Miami Herald reporter to its response in the Supreme Court case.

Setting the stage, The Florida Bar's lawyers argued that May "has no clear legal right to compel the Bar to investigate and prosecute another member of the Bar.

"Like any other person, Mr. May can file a sworn complaint against a member of the Bar," they stated. "However, The Florida Bar owes no legal duty to the petitioner with respect to attorney discipline. This Court has held that Bar disciplinary proceedings

are not designed to vindicate the rights of private parties.”

MORE: Group accuses Bondi of ‘misconduct’ as attorney general

In its petition to the Supreme Court, the coalition challenged the state Bar’s assertion that it “does not investigate or prosecute” presidentially appointed federal officials such as Bondi while they’re still in office.

The coalition noted that in 1998, Congress passed the McDade Amendment, which explicitly rejected the Bar’s argument that investigating federal officials would encroach on federal authority. The McDade Amendment states: “Attorneys for the [U.S.] Government shall be subject to State laws and rules ... to the same extent and in the same manner as other attorneys in that State.”

The coalition, which includes retired Florida Supreme Court justices Barbara J. Pariente and Peggy A. Quince, took aim at Bondi in its complaint filed in early June with The Florida Bar. Democratic Gov. Lawton Chiles appointed Pariente to the court in 1997 while Chiles and Republican Jeb Bush, then governor-elect, jointly appointed Quince.

The coalition’s complaint accused Bondi, a Florida Bar member, of violating her ethical duties as U.S. attorney general, saying she has committed “serious professional misconduct that threatens the rule of law and the administration of justice.”

The complaint claimed Bondi “has sought to compel Department of Justice lawyers to violate their ethical obligations under the guise of ‘zealous advocacy’ “ that she espoused in a February memo to all agency employees on her first day in office.

The complaint further said Bondi threatened agency lawyers with discipline or termination if they failed “to zealously pursue the President Donald Trump’s political objectives,” alleging her conduct violated Florida Bar rules and longstanding norms of the Justice Department.

The coalition’s complaint accused Bondi — the 59-year-old former Florida attorney general and state attorney in the Tampa area — of playing a central role in the

improper firings and resignations of numerous government lawyers during a four-month span at the helm of the Justice Department. Three examples were cited in the 23-page complaint:

- In mid-April, Bondi and Deputy Attorney General Todd Blanche fired a seasoned immigration lawyer who the Trump administration accused of sabotaging its legal case over the mistaken deportation of a Maryland man to his native El Salvador.
- In mid-February, a longtime federal prosecutor resigned rather than carry out what she described as orders from Trump-appointed officials to pursue enforcement actions unsupported by evidence, according to a copy of her resignation letter. ■ Earlier in February, several senior federal prosecutors in New York and Washington resigned after they refused to follow a Justice Department order to drop the corruption charges against New York Mayor Eric Adams.

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